
Brett Kavanaugh Is Carving Out Quite a Little Legacy for Himself

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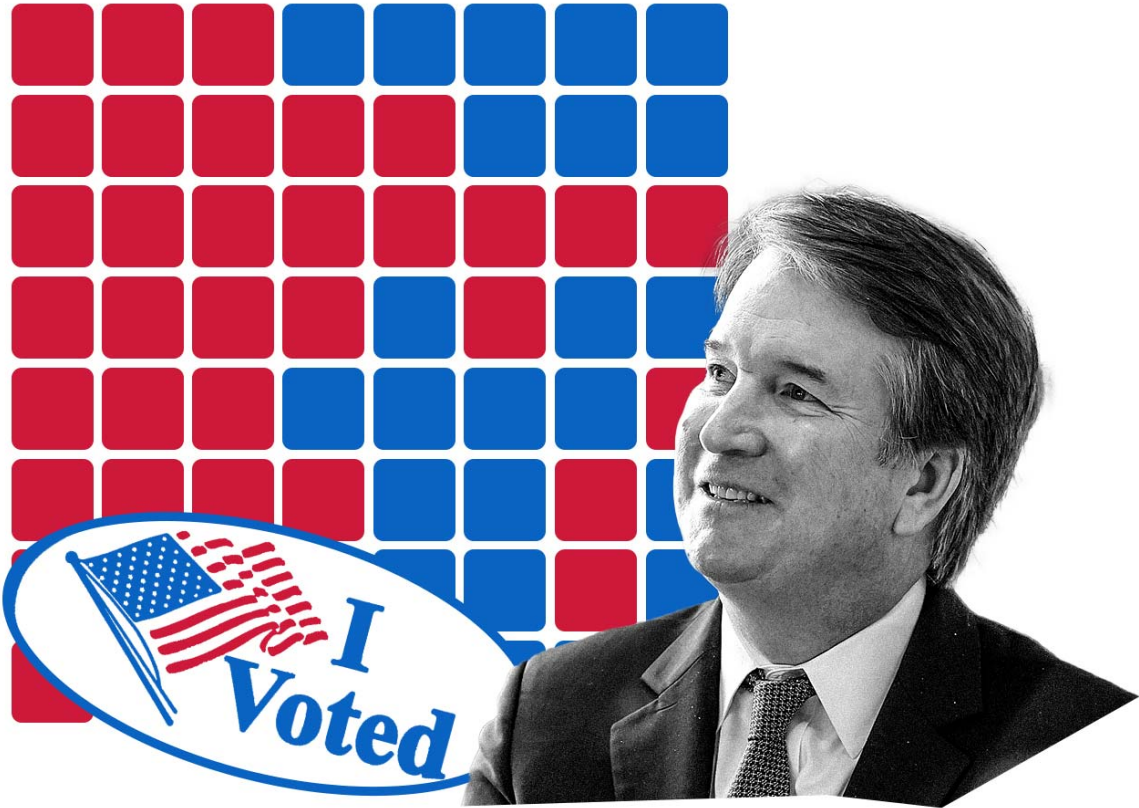
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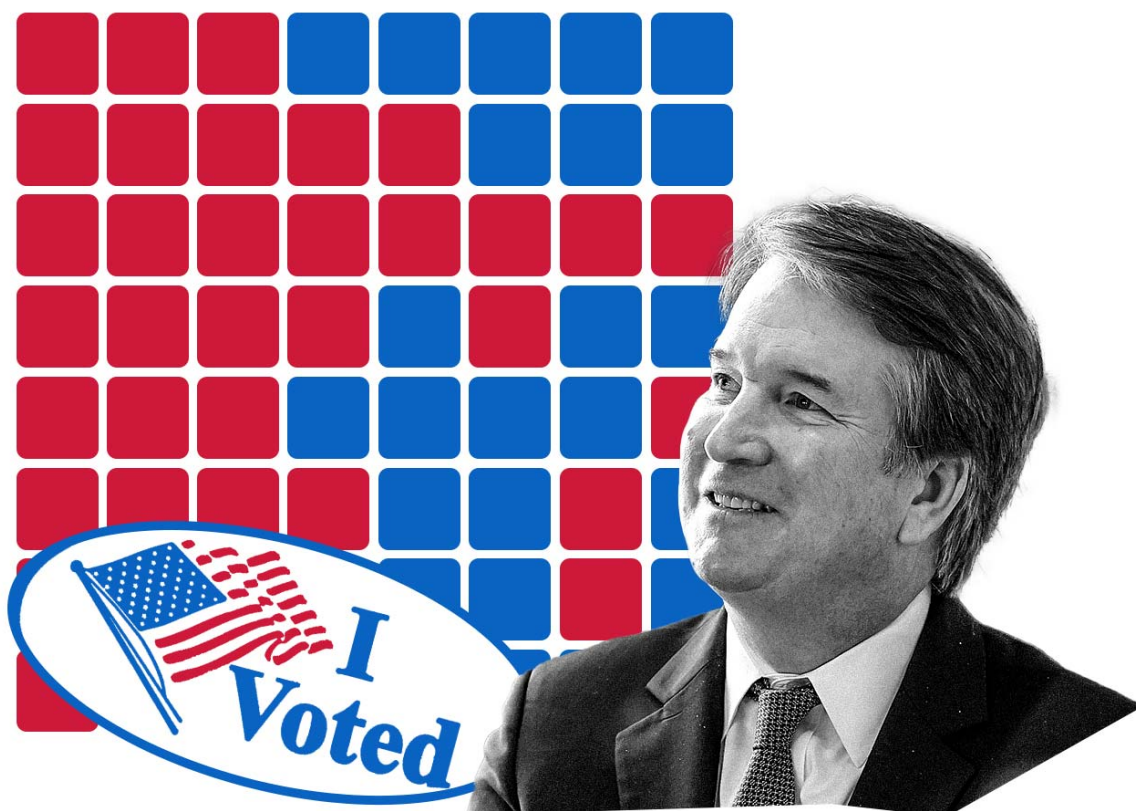


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[Sign up for the Surge](#), the newsletter that covers most important political nonsense of the week, delivered to your inbox every Saturday.

Welcome to this week's edition of the Surge, Slate's politics newsletter that will begin with a lightning round of commentary on news stories we didn't otherwise have big thoughts about: The Gaza ceasefire is good! The Young Republicans' [group chat is bad](#). The ongoing government shutdown is definitely a thing that is happening.

What *do* we have thoughts on? Various old Democrats running against various young Democrats in Senate primaries. The war on Caribbean boats potentially expanding to Venezuela(?). A new prosecution of someone Trump dislikes on cable news. Plus, Republicans' free advertisements for the No Kings protests.

We also have a housekeeping note: The Surge will be going on hiatus after this week, likely through the end of the year. We expect all of America's problems to be resolved by then.

Speaking of problems...

1.

Brett Kavanaugh

Another major swipe at the Voting Rights Act.

Once again, the Supreme Court suspects that Black people may have too cushy of a deal in the United States of America. The court heard oral arguments this week on Section 2 of the 1965 Voting Rights Act, and whether creating majority-minority districts to prevent the dilution of minorities' votes violates the 14th and 15th Amendments. [Deep sigh.] Were VRA-protected districts eliminated, it would gut Black representation in Congress, cost Democrats [somewhere in the ballpark](#) of a dozen seats in Congress, and require Democrats to achieve landslide performances to achieve a bare majority in the House.

It sounded during arguments like the [court is eager to do this](#)—as evidenced, even before oral arguments, by its decision over the summer to [assign itself](#) this broad question. One hallmark of this SCOTUS majority going back to *Shelby County* in 2013, which gutted other sections of the VRA, is that it doesn't think racism is that big of a problem anymore, and so it's time to declare a whole bunch of stuff—voting rights protections, affirmative action—unconstitutional. The likely swing vote is Justice Brett Kavanaugh, who's looking for another banger after having [recently permitted](#) law enforcement to ask Hispanic-looking people eating lunch for their papers. During oral arguments, Kavanaugh said that “race-based remedies are permissible for a period of time” but “should not be indefinite and should have an end point.” When's the end point? Does Kavanaugh think things look pretty solid now, racism-wise? Much hinges on this question.

2.

Janet Mills

The Maine event. [Groan.]

After months of recruitment efforts from Senate Democratic Leader Chuck Schumer, Maine's Democratic governor this week entered the Senate race to unseat Sen. Susan Collins. Before she can get to that general election matchup, though, she'll have to get through a primary against veteran and oysterman Graham Platner, a political newcomer who's raised a lot of cash and attracted a lot of attention since announcing his run in August. The primary matchup puts a lot of current questions in Democratic politics—old vs. young, insider vs. outsider, populist vs. establishment—on the line. Read more about it [here](#).

For our purposes today, we'll focus on the glaring imperfections that have already come to light for each primary candidate. For Platner, being an outsider and political novice has its advantages. But it also means he's posted a lot of shit on the internet in the past. [CNN](#) dug up some old (and since deleted) Reddit posts of his in which he jokes about how he became a “communist” the older he got, how “cops are bastards,” and how white rural America is “racist and stupid.” He's got his work cut out for him. Mills, meanwhile, has one specific quote that she's going to have a hard time shaking. “She's in a tough position,” Mills [said recently](#) of Susan Collins. “I appreciate everything she is doing.” This isn't the precise tone that incensed Democratic primary voters crave right now.

And it's already been cut into a [pro-Collins ad](#).

3.

Pete Hegseth

A Pentagon press exodus.

Late in the afternoon on Wednesday, nearly all of the Pentagon press corps packed up their stuff, turned in their press badges, and [exited the building as a group](#). At issue was a lengthy new press credential policy imposed by Defense Department leaders that limited reporters' access and raised the prospect of punishment for asking people questions the Pentagon did not want asked. Though the DOD's initial draft, which would have required Pentagon authorization for publishing even unclassified information, was softened in negotiations with the press corps, it was still a bridge too far. The most concerning part (Page 10 in this [helpful graphic](#)) is the warning against "solicitation" of information. You might lose your press pass if you ask Gen. McGossip for hot war scoops? What's going on here?

Credit to news bureaus, including conservative outlets like Fox News, Newsmax, and the Daily Caller, who rejected this, while those few U.S. based outlets that did sign it should be made fun of. How is this remedied? Well, it would help if the broader public showed some revulsion at a rollback of press access and a lack of information about what's going on in the Pentagon, though we're not holding our breath. But reporters are not going to stop covering the Pentagon just because they've lost access to the building. And now they've got nothing to lose.

4.

John Bolton

This week's political prosecution was slightly less political! Small wins.

Former Trump National Security Adviser John Bolton was indicted Thursday in Maryland on [18 counts](#) relating to the mishandling of classified information, after FBI agents had raided his home in August. Bolton had become a Trump critic after his service in the first Trump administration. Since he airs these views on cable news constantly, Trump was deeply aware of this.

Nevertheless, this indictment isn't as purely a political spectacle as those of former FBI Director James Comey and New York Attorney General Letitia James were in recent weeks. Bolton did, in diarylike entries, allegedly write down and transfer a lot of sensitive notes to family members during his time as national security adviser. That caused further problems when his personal email, from which some of those entries were allegedly sent, was hacked by Iran. Unlike the Comey and James indictments, this indictment was investigated by and signed by regular prosecutors, not just a single political hack, and it wasn't preceded by a wave of resignations or forced firings. Would Bolton have

been charged had Trump not been president and personally disliked him? We're not so sure. But then again, it's good to see the Trump DOJ providing accountability for the lax national security practices of whichever administration was in charge in 2018–19.

5.

Seth moulton

Is Ed Markey's time up?

In 2020, Rep. Joe Kennedy III primaried Massachusetts Sen. Ed Markey for the U.S. Senate. Kennedy ran on a campaign of calling Markey old and useless without *specifically* calling him old and useless, and argued that he'd bring a fresh air of youth and vigor to the Democratic caucus. It backfired. Kennedy was criticized for not having a message so much as a sense of Kennedy entitlement. Markey was backed by a curious mix of the Massachusetts political establishment, a [youth meme army](#), and [progressive activists](#). It was the first time a Kennedy lost an election in Massachusetts.

We're curious to see if Markey, currently 79 years old and approaching his 50th year in Congress, can pull off this feat again now that Democratic voters are eagerly hunting down old politicians in the streets. We're not ruling it out—given the opponent he drew this week. Massachusetts Rep. Seth Moulton, now with a full decade and one failed presidential bid under his belt as an “ambitious young Democrat,” [announced his Senate bid this week](#), saying all the things you'd expect him to say about Markey (old, over-the-hill). But the Massachusetts establishment protects its own, and we'd expect them to rally around Markey again. Progressives still like Markey for his climate work, and perhaps more importantly, [Moulton has his own problems with progressives](#). Even with Democrats' searing post-2024 trauma against running aged candidates, Markey has a chance to put together the same coalition that kept him in office six years ago.

6.

Alvin Holsey

Not a big boat-bombing guy?

Much is going on in the Caribbean, from a war perspective. The administration has continued bombing boats under the suspicion that they're carrying drugs, a justification that would put nearly every boat in Florida under military threat. But there's much more activity than that. The administration has organized the [largest military buildup](#) in the Caribbean since the 1980s as it applies pressure on the Nicolás Maduro regime in Venezuela. Additionally, the New York Times [reported](#) this week that Trump had authorized the CIA to “conduct covert action in Venezuela,” with Trump admitting that the administration was looking at Venezuelan land targets.

Amid all this, the military official who oversees operations the Caribbean [announced](#) his retirement this week, effective in December. Adm. Alvin Holsey, the commander of U.S. Southern Command, had only been in the job for a year. While Holsey and Hegseth displayed no tensions in their public announcements of the move, Holsey “had raised concerns about the mission and the attacks on the alleged drug boats,” per the [Times](#). It appears the administration had another case of a guy asking follow-up questions about the legality of all this. Time for him to leave.

7.

Mike Johnson

Official hype man of the No Kings protests.

On Saturday, thousands of No Kings protests against the Trump administration will be held across the country as a follow-up to the day of protests in June. The most publicity that we’ve seen from it has come from Republicans, who have gone into overdrive to portray anti-Trump protesters as an army of orcs.

Speaker Mike Johnson has been [describing the protests](#) as the “pro-Hamas” “hate America rally,” to be filled up with “the antifa people.” House Majority Whip Tom Emmer [described](#) the protesters as from the “terrorist wing” of the Democratic Party. White House press secretary Karoline Leavitt [said that](#) “the Democrat Party’s main constituency are made up of Hamas terrorists, illegal aliens, and violent criminals.” (Those remarks from Leavitt prompted quite a response from House Democratic Leader Hakeem Jeffries, who [described](#) Leavitt as “sick,” “out of control,” and potentially “demented,” “ignorant,” and a “stone cold liar.”) Well, the Surge would like to wish any of you pro-Hamas, antifa, terrorist, violent, criminal, illegal alien degenerates considering attending a protest against the president’s policies a nice time; remember to pack snacks.

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